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Case Number: 26STCV07950 Hearing Date: September 11, 2026 Dept: 514

Lopez v. FCA US, LLC

26STCV07950

Defendants' Motion for Judgment on the Pleadings

Tentative Ruling

The memorandum of points and authorities

exceeds the permissible page length. The

Court disregards the arguments made on or after page 16 of the memorandum.

The motion is denied.

Background

This case arises out of the

acquisition of a Certified Pre-Owned 2018 Jeep Grand Cherokee (the "Vehicle") by

Plaintiff Cecilia Lopez ("Plaintiff") in November 2021.

On February 6, 2025, Plaintiff

filed the complaint in this action in San Diego Superior Court. Plaintiff named as defendants FCA US, LLC

("FCA") and Autonation Chrysler Dodge Jeep Ram Valencia ("Autonation Valencia")

and asserted causes of action for: (1) violation of subdivision (d) of Civil

Code section 1793.2, (2) violation of subdivision (b) of Civil Code section

1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4)

breach of implied warranty of merchantability (Civil Code sections 1791.1,

1794, 1795.5), (5) negligent repair, and (6) fraudulent concealment.

On April 25, 2025, FCA filed an answer.

On May 2, 2025, Autonation Valencia filed an answer.

In January 2026, the case was transferred to Los Angeles County Superior Court.

On May 21, 2026, FCA and Autonation Valencia (collectively, "Defendants") filed this motion for judgment on the pleadings. Plaintiff filed an opposition on July 16, and Defendants filed a reply on July 30.

On August 11, 2026, the Court continued the hearing to September 11 and ordered counsel to meet and confer.

On August 20, 2026, Defendants filed a declaration of counsel regarding the meet and confer.

Trial is set for June 5, 2028.

Legal Standard

California practice recognizes two types of motions for judgment on the pleadings.

First, there is a statutory motion. (See Code Civ. Proc., § 438.) A defendant may bring a statutory motion for judgment on the pleadings when "the complaint does not state facts sufficient to constitute a cause of action against that defendant." (Id., subd. (c)(1)(B)(ii).) A statutory motion for judgment on the pleadings must be filed within certain time limits, and it is subject to a statutory meet-and-confer requirement. (Id., subd. (e); Code Civ. Proc., § 439.) The grounds for a statutory motion for judgment on the pleadings must "appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 438, subd. (d).)

Second, there is a non-statutory motion for judgment on the pleadings, which "may be made at any time either prior to

the trial or at the trial itself.” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877; see also Smiley v. Citibank (South Dakota) (1995) 11 Cal.4th 138, 145 fn. 2; Tarin v. Lind (2020) 47 Cal.App.5th 395, 402; Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

A motion for judgment on the pleadings is the functional equivalent of a demurrer.

(People ex rel. Harris v. Pac Anchor Transp. (2014) 59 Cal.4th 772, 77; City of Rancho Palos Verdes v. State (2025) 114 Cal.App.5th 13, 23.) “The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322; accord Los Angeles Unified School Dist. v. Torres Construction Corp. (2020) 57 Cal.App.5th 480, 494; Templo v. State (2018) 24 Cal.App.5th 730, 735; Southern California Edison Co. v. City of Victorville (2013) 217 Cal.App.4th 218, 227; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2026] ¶ 7:275.)

Discussion

The Court notes, at the outset, that Defendants' memorandum in support of their motion exceeds the permissible page length. (Cal. Rules of Court, rule 3.1113.) Defendants have not sought or obtained a court order permitting them to file an overly long brief.

The Court exercises its discretion to consider only pages 1 through 15 of the memorandum of points and authorities and to disregard the arguments made by Defendants in the remainder of the memorandum, commencing at the top of page 16.

Defendants move for judgment on the pleadings on all six causes of action in the complaint. Defendants also seek to strike the punitive damages allegations in the complaint. The Court considers each of Defendants' arguments in turn.

First and Second Causes of Action (Civil Code Sections 1793.2, Subdivisions (d) & (b))

Defendants' first

argument is that the First and Second Causes of Action in the complaint, brought under subdivisions (d) and (b) of Civil Code section 1793.2, are time-barred. (Mem., at pp. 4-5.)

Because a general demurrer lies where the complaint, or facts judicially noticeable, are insufficient to state a cause of action, a general demurrer may lie where the dates alleged show the cause of action is barred by the statute of limitations. (See *Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300; *Iverson, Yoakum, Papiano & Hatch v. Berwald* (1999) 76 Cal.App.4th 990, 995; *Vaca v. Wachovia Mortg. Corp.* (2011) 198 Cal.App.4th 737, 746.) "A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Geneva Towers Ltd. Partnership v. City of San Francisco* (2003) 29 Cal.4th 769, 781 [citations omitted]; see also *Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.App.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.)

Defendants argue

that under AB 1755, signed into law on September 29, 2024, and effective as of January 1, 2025, actions brought under Civil Code section 1793.2, subdivisions (b) and (d), must be filed no later than six years after the date of original delivery of the motor vehicle. (Civ. Code, § 871.21, subd. (b).)

Defendants contend

that because the case involves a 2018 model year vehicle, the original delivery date of the vehicle must have been in 2018 – and that therefore any lawsuit under subdivisions (b) and (d) of section 1793.2 must have been filed before the end of 2024 (six years later) to be timely. (Mem., at 5:12-18.)

Nowhere in the complaint, however, does the Plaintiff allege the date of the original delivery of the

vehicle. The statute of limitations, moreover, is a defensive matter. The Court may sustain a demurrer (or, here, grant a motion for judgment on the pleadings) on this basis only if it appears from the face of the pleadings that the action is time-barred. A plaintiff is under no obligation to anticipate potential affirmative defenses and plead facts sufficient to defeat them.

On this record, the Court cannot determine whether the First and Second Causes of Action are time-barred as a matter of law.

The Court need not reach, and does not reach, Plaintiff's other arguments on this issue.

The motion for judgment on the pleadings is denied as to the First and Second Causes of Action.

Third Cause of Action (Civil Code Section 1793.2, Subdivision (a)(3))

Under Civil Code section 1792.3, subdivision (a)(3), FCA is required to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period."

Defendants argue that Plaintiff has not alleged sufficient facts to support this cause of action.

(Mem., at pp. 5-6.) But Plaintiff alleges a violation of this statutory provision. (Compl., ¶¶ 52-53.) And she alleges that an authorized dealer was unable to complete repairs on the Vehicle. (Compl., ¶¶ 60-62.) Viewing the complaint in the light most favorable to the Plaintiff, and drawing all reasonable inferences in her favor, this is sufficient at the pleading stage.

The motion for judgment on the pleadings is denied as to the Third Cause of Action.

Fourth Cause of Action (Breach of Implied Warranty of Merchantability)

Defendants argue that the Fourth Cause of Action, for breach of the implied warranty of merchantability is barred by a four-year statute of limitations. (Mem., at pp. 6-7.) As Plaintiff alleges that she acquired the vehicle (along with the implied warranty of merchantability) in November 2021 and filed suit less than four years later, it is unclear how this claim would be time-barred. In any event, where, as here, a warranty “extends to future performance of the goods,” the cause of action for breach of the implied warranty of merchantability “accrues when the breach is or should have been discovered.”

(Comm. Code, § 2725, subd. (2); see also, e.g., *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1306; *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-214.) In the complaint, Plaintiff alleges that FCA’s authorized repair facilities continued to attempt to repair the vehicle after she purchased it in November 2021.

The motion for judgment on the pleadings is denied as to the Fourth Cause of Action.

Fifth Cause of Action (Negligent Repair)

Defendants contend that Plaintiff fails to allege facts sufficient to support a cause of action for negligent repair. (Mem., at p. 11.) But Plaintiff alleges that she delivered the Vehicle to Defendant Autonation Valencia for repair on at least one occasion, and that Autonation breached the duty of ordinary care in failing to repair the Subject Vehicle. (Compl., ¶¶ 60-62.) Viewing the complaint in the light most favorable to the Plaintiff, and drawing all reasonable inferences in her favor, this is sufficient at the pleading stage.

The motion for judgment on the pleadings is denied as to the Fifth Cause of Action.

Sixth Cause of Action (Fraudulent Inducement/Concealment)

In the Sixth Cause of Action, Plaintiff asserts a cause of action for fraudulent concealment. Defendants argue that this cause of action is time-barred (Mem., at pp. 10-11, 12-15) and that Plaintiff does not allege facts sufficient to state this cause of action (Mem., at pp. 7-10).

Beginning with the statute of

limitations, an action for fraud must be brought within three years. (Code Civ. Proc., § 338, subd. (d).) The statute expressly provides, however, that

the “cause of action ... is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud” (Ibid.)

In the complaint, Plaintiff alleges that she acquired the Vehicle in November 2021 and that at some time thereafter brought the Vehicle to an authorized dealer for repairs. The complaint does not clearly and affirmatively establish that Plaintiff discovered the facts constituting the fraud on or before February 6, 2022, the date that is three years before the complaint was filed.

The motion for judgment on the pleadings as to the Sixth Cause of Action on this basis is denied.

Next, Defendants argue that Plaintiff does not sufficiently allege the elements of her cause of action for fraudulent concealment.

“One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.” (Civ. Code, § 1709.)

The Civil Code recognizes four types of fraud: (1) an intentional misrepresentation; (2) a negligent misrepresentation; (3) concealment; and (4) promissory fraud. (Civ. Code, § 1710.) “California case law ... has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 39.)

The elements of a cause of action for fraudulent concealment are:

“(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.”

(Rattagan, *supra*, 17 Cal.5th at 1, 40; see also *Boschma v. Home Loan Center* (2011) 198 Cal.App.4th 230, 248; *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.)

Fraudulent concealment is actionable only when there is a duty to disclose.

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.”

(Rattagan, *supra*, 17 Cal.5th at pp. 40–41 [citations omitted]; see also, e.g., *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312; *SCC Acquisitions v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 860; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336–37.)

A plaintiff must plead fraud with particularity. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 993; *Lazar v. Super Ct.* (1996) 12 Cal.4th 631, 645; *Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1090-1092.) This rule applies to causes of action for fraudulent concealment. As our Supreme Court has explained:

“If the duty [to disclose] allegedly arose by virtue of the

parties' relationship and defendant's exclusive knowledge or access to certain facts ..., the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission."

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 347.) "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient." (Ibid; see also Rattagan, supra, 17 Cal.5th at pp. 43–44.)

Reviewing the Complaint,

Plaintiff alleges that FCA acquired knowledge of the Engine Defect through "pre-production and postproduction testing data; early consumer complaints about the Engine Defect made directly to FCA and its network of dealers; aggregate warranty data compiled from FCA's network of dealers; testing conducted by FCA in response to these complaints; as well as warranty repair and part replacements data received by FCA from FCA's network of dealers, amongst other sources of internal information." (Compl., ¶ 19; see also id., ¶¶ 16, 22-26, 67.) Even with this knowledge, FCA failed to disclose this information to its sales representatives and Plaintiff at the time of sale and thereafter. (Compl., ¶¶ 20, 25, 48.) Plaintiff alleges that if she had known of the defect, she would not have purchased the Vehicle. (Compl., ¶¶ 21, 24, 69-71.)

Based on these allegations in the complaint, and others, the Court determines that Plaintiff has alleged sufficient facts to state a cause of action for fraudulent concealment.

The motion for judgment on the pleadings is denied as to the Sixth Cause of Action.

Punitive Damages

Defendants also seek a motion for judgment on the pleadings as to the punitive damages allegations.

This request is denied for three independent reasons. First, the argument appears almost entirely on pages 16 through 18 of the memorandum, which the Court is disregarding. Second, a motion for judgment on the

pleadings functions like a demurrer and must be directed to a cause of action; a demurrer (or motion for judgment on the pleadings) is not properly directed to a portion of a cause of action or a claim for relief. Third, Plaintiff has, as set forth below, sufficiently alleged a cause of action for fraud.

The motion for judgment on the pleadings as to the punitive damages allegations in the complaint is denied.

Conclusion

The Court DENIES the motion of Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram Valencia for judgment on the pleadings.

Moving Party is ORDERED to give notice.